

22PR00263 Conservatorship of Wayne O Evenson

County: santa-barbara

Division: Conservatorship

Department: 2 SM-Cook

Hearing date: 2026-09-22

Motion: First Account and Report of Successor Conservator

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Tentative Ruling: Conservatorship of Wayne O Evenson

Case Number

22PR00263

Case Type

Conservatorship

Hearing Date / Time

Tue, 09/22/2026 - 09:00

Nature of Proceedings

First Account and Report of Successor Conservator

Tentative Ruling

Probate Notes:

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Appearances required.

The following discrepancies must be addressed by Supplement:

Discrepancy no. 1 – The estate is losing money at a rate that will not support the conservatee past 2036. The following causes are readily identifiable from the schedules:

Stock losses on sale (\$8,816.75)

Management fees for investment accounts (\$12,996.28)

Proposed resolution: Order no sales for losses in the future, unless a documented need exists that justifies sale of securities at a loss to pay for the need.

Discrepancy no. 2 – Resolved by supplement.

Discrepancy no. 3 – The estate suffered a loss of \$8,816.75 due to the sale of several securities at a significantly less market value than the carry value. A fiduciary ordinarily has a duty to invest trust property, preserve it, and make it productive. (Prob. Code §§16006–16007.) The fiduciary's investment powers are derived from powers set by statute (Prob. Code, §§16200(b), 16047), case law, and the circumstances of the estate and its beneficiaries. All of these sources of investment powers are considered in determining whether an investment is proper. (See Estate of Collins (1977) 72 Cal.App.3d 663.)

The default investment standard for all fiduciaries is the prudent investor rule. (Prob. Code, §16046(a).) In general, the duty to invest extends to accumulated but undistributed income as well as principal. (Lynch v John M. Redfield Found. (1970) 9 Cal.App.3d 293.)

Therefore, a supplement is required to explain the stock losses.

Proposed resolution: Order no sales for losses in the future, unless a documented need exists that justifies sale of securities at a loss to pay for the need. Order conservator to place a limit on trades to cut down on broker fees.

Discrepancy no. 4 – Resolved by supplement.

Discrepancy no. 5 – Resolved by supplement.

Discrepancy no. 6 – Resolved by supplement.

Discrepancy no. 7 – Several entries for the Conservator fees do not contain sufficient detail to determine whether the work performed was “reasonable” or related to the administration of the estate. The following are examples of multiple entries in the billing statement that must be itemized and explained in better detail:

Date

Description in billing statement

Discrepancy

11/15/24

TC with Wells Fargo in PA

About what? The weather?

11/30/24

16 calls on cell phone for the month

About what? vacations?

1/31/2025

78 incoming emails for January, 9 from caregiver, 6 from bank, 34 from attorney, 1 from pharmacy, 13 from investment advisor, 4 from family, 9 from geriatric

manager, 1 from pension plan, one from physician.

About what? Politics?

All petitions for orders fixing and allowing compensation must comply with the requirements of rule 7.702 concerning petitions for extraordinary compensation in decedents' estates, to the extent applicable to guardianships and conservatorships, except that the best interest of the ward or conservatee is to be considered instead of the interest of beneficiaries of the estate. CRC 7.751(b)

Phrases such as 'court appearances,' 'initial investigation, study and preparation,' 'determination of complex issues,' 'sales of property,' 'services in connection with the collection of notes and accounts,' 'services in negotiating and completing the settlement of the issues presented by * * * and subsequent services in effectuating,' 'extensive preparation in advance of the hearing,' 'extensive office consultation, research, interviewing of witnesses, collection of evidence,' 'preparation and filing of * * * tax returns * * * including numerous conferences' lend little towards informing of the extent of the extraordinary services performed, without the taking of evidence to substantiate with particularity the actual services, item by item, for which extra compensation is sought.

(In re Fulcher's Estate (1965) 234 Cal.App.2d 710, 717 [emphasis added].)

According to CRC, Rule 7.756:

(a) The court may consider the following nonexclusive factors in determining just and reasonable compensation for a conservator from the estate of the conservatee or a guardian from the estate of the ward:

- (1) The size and nature of the conservatee's or ward's estate;
- (2) The benefit to the conservatee or ward, or his or her estate, of the conservator's or guardian's services;
- (3) The necessity for the services performed;

- (4) The conservatee's or ward's anticipated future needs and income;
 - (5) The time spent by the conservator or guardian in the performance of services;
 - (6) Whether the services performed were routine or required more than ordinary skill or judgment;
 - (7) Any unusual skill, expertise, or experience brought to the performance of services;
 - (8) The conservator's or guardian's estimate of the value of the services performed; and
 - (9) The compensation customarily allowed by the court in the community where the court is located for the management of conservatorships or guardianships of similar size and complexity.
- (b) No single factor listed in (a) should be the exclusive basis for the court's determination of just and reasonable compensation.

Proposed resolution: Reduce fee award by \$855.00 for failure to provide sufficient detail to allow the Court to determine reasonableness and necessity of billing entries.

Discrepancy no. 8 – There is no allegation in the petition related to Court Investigator fees. “In cases involving a court investigation, a petition for approval of an account must state the amount of court investigator's assessments that have been paid and any amount due and owing. A receipt for payment must be filed, unless the fiduciary has obtained an order deferring or waiving payment of the assessment.” (Local Rule 1741)

Judges

Judge James F. Rigali

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